

as to the first, ninth, tenth, and eleventh causes of action, and denied as to the second, third, fourth, fifth, and seventh causes of action, and as to claims against Michel Rehayem. Plaintiff's request to file an amended complaint asserting a cause of action for wrongful foreclosure is denied.

13. 9:00 AM CASE NUMBER: MSC21-00076
CASE NAME: VALDIVA VS. AYALA
***HEARING ON MOTION IN RE: ENTRY OF FINAL JUDGMENT**
FILED BY: VALDIVIA, ADRIANA
TENTATIVE RULING:

The Court continues the hearing on this motion to April 2, 2026 at 9:00 a.m.

14. 9:00 AM CASE NUMBER: N25-2407
CASE NAME: PETITION OF: CITY OF CONCORD
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: CITY OF CONCORD
TENTATIVE RULING:

Before the Court is an amended petition to compel arbitration and to consolidate separate arbitration proceedings ("Amended Petition"), filed by the City of Concord.

For the reasons set forth below, the Court's tentative ruling is to DENY the Amended Petition.

Background

Petitioner the City of Concord ("Petitioner") employs employees represented by the respondent Concord Police Association ("Respondent"). (Amended Petition, ¶ 1.) Respondent represents all full-time police officers and sergeants on all matters pertaining to their wages, hours and conditions of employment. (*Id.*, at ¶ 2.) Officer One is a former Concord police officer and Officer Two is a former Concord police officer. (*Id.*, at ¶¶ 3, 4.) A Memorandum of Understanding ("MOU") governs the relationship of Petitioner and Respondent. (*Id.*, at ¶ 5.)

Officer One was dismissed from his position and through counsel requested arbitration pursuant to MOU section 17.11.4. (Amended Petition, ¶ 8.) Consistent with MOU section 17.11.6, the parties selected an arbitrator ("Arbitrator One") and commenced arbitration in person with Arbitrator One. (*Id.*, at ¶ 9.) Following two days of hearing, Arbitrator One recused himself. (*Ibid.*) The parties made some offers to one another relating to how to proceed subsequent to Arbitrator One's recusal in the arbitration for Officer One but did not come to any agreement. (*Id.*, at ¶¶ 10-11.) Petitioner asserts that it wants to hold a consolidated arbitration for Officer One and Officer Two with a newly selected arbitrator and represents that Officer One is now refusing to arbitrate Officer One's termination. (*Id.*, at ¶ 11.)

Officer Two was dismissed from his position and through counsel requested arbitration pursuant to MOU section 17.11.4. (Amended Petition, ¶ 13.) Consistent with MOU section 17.11.6, the parties selected an arbitrator ("Arbitrator Two") with an arbitration scheduled to take place via videoconference. (*Id.*, at ¶ 14.) Petitioner asserts that Arbitrator Two previously served as an

arbitrator in a discipline case involving Petitioner and Respondent and ruled against Petitioner after finding one of Petitioner's witnesses was not credible. (*Id.*, at ¶ 17.) Petitioner is concerned because it asserts that the same witness is a key witness for the arbitrations of Officer One and Officer Two. (*Ibid.*) Petitioner asserts that because of health reasons, Arbitrator Two cannot hold an in-person hearing, and that despite Petitioner initially agreeing to conduct the hearing virtually, it no longer wishes to proceed in that manner. (*Id.*, at ¶ 18.)

Petitioner filed the instant Petition on December 10, 2025. Respondent filed an opposition on March 9, 2026. Petitioner filed a reply on March 12, 2026.

Legal Standard

"Under both federal and state law, the threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate." (*Herzog v. Superior Court* (2024) 101 Cal.App.5th 1280, 1293-1294; see also *Toal v. Tardif* (2009) 178 Cal.App.4th 1208, 1219-1220.) California law determines the answer to this threshold question. (*Ibid.*) Mutual assent, or consent, of the parties is essential to the existence of a contract, and consent is not mutual, unless the parties all agree upon the same thing in the same sense. (*Ibid.*, see also Civ. Code, §§ 1550, 1580, 1565.)

"Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings. (*Ibid.*; see also *Esparza v. Sand & Sea, Inc.* (2016) 2 Cal.App.5th 781, 788.) The party seeking arbitration bears the burden of proving the existence of an arbitration agreement. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC*, (2012) 55 Cal.4th 223, 236.)

A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract. (Code Civ. Proc., § 1281.)

Analysis

The Court begins with this basic proposition: "In view of the strong public policy in favor of arbitration as a means of resolving disputes, the courts have consistently limited judicial interference to the minimum consistent with due process, fundamental fairness, and applicable statutory law in order to promote as much as possible the finality and conclusiveness of awards in arbitration." (*City of Oakland v. United Public Employees* (1986) 179 Cal.App.3d 356, 363.)

First Claim for Relief – Compelling Arbitration of Officer One

Petitioner asserts that Officer One was dismissed from his position and through counsel requested arbitration pursuant to MOU section 17.11.4. (Amended Petition, ¶ 8.) Consistent with MOU section 17.11.6, the parties selected an arbitrator and commenced arbitration in person with Arbitrator One. (*Id.*, at ¶ 9.) Following two days of hearing, Arbitrator One recused himself. (*Ibid.*)

Petitioner argues that the Court should order Respondent to arbitrate the matters of Officer One and Officer Two because the parties are subject to a mandatory arbitration provision and none of the enforceability exceptions exist.. (MPA ISO Amended Petition, pp. 4-5.) Respondent argues that Petitioner has failed to join the officers as indispensable parties and that the Petition should be

denied because it is the City that is refusing to arbitrate as required by the MOU, as Respondent states the parties have already agreed to hear the arbitrations before specified arbitrators selected using the MOU. (Opposition, pp. 5-6.) On Reply, Petitioner argues that the Court should disregard the late filed Opposition. (Reply, pp. 2-4.)

The Court will consider the Opposition filed by Respondent because Petitioner has neither argued nor shown prejudice. (Reply, pp. 2-4; *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 847 [“Courts have long acknowledged that the trial court may consider untimely filed and served response papers, when no prejudice to the petitioner is shown, without an order extending the 10-day time period of section 1290.6.”].) Respondent’s objection to the Reply is overruled.

The Court notes that the Petition here does not ask the Court to compel arbitration but rather asks this Court to issue a ruling modifying an already pending arbitration. Officer One has agreed to arbitrate and initiated the arbitration process, and an arbitrator and back up arbitrator has been selected. The arbitration even proceeded for two days before the arbitrator withdrew or recused himself. (Amended Petition, ¶¶ 3-11.)

The MOU provides a clear directive on how arbitrators are to be selected, and this involves each side vetoing an arbitrator from a list of ten names, one at a time, down to one name, with the last name left being the arbitrator. (Petition, Exhibit A, MOU, § 17.11.6.) The party who gets to veto first is decided by a coin toss. (*Ibid.*) “The next to last name stricken shall be the alternate arbitrator to serve in the event the first arbitrator is not available.” (*Ibid.*) For Officer One’s arbitration, the initial arbitrator recused or withdrew from the case. At this point, it is unclear why Petitioner and Respondent are not moving forward with the arbitration of Officer One with the alternate arbitrator now that the first arbitrator is no longer available due to recusal or withdrawal, which is what the arbitration agreement appears to require. Whether or not to start the arbitration anew or continue where the prior one left off would be a decision to be posed to the alternate arbitrator. Because the Court has no authority to compel an arbitration where one is already pending, the Court **DENIES** Petitioner’s first claim for relief, which requests the Court to compel the arbitration of Officer One.

Second Claim for Relief – Compelling Arbitration of Officer Two

Officer Two was dismissed from his position and through counsel requested arbitration pursuant to MOU section 17.11.4. (Amended Petition, ¶ 13.) Consistent with MOU section 17.11.6, the parties selected an arbitrator (“Arbitrator Two”) with an arbitration scheduled to take place via videoconference. (*Id.*, at ¶ 14.) The issue here is similar to the situation for Officer One, in that the Court notes that the Petition is not asking the Court to compel arbitration, but rather asks this Court to issue a ruling modifying an already pending arbitration. Officer Two has agreed to arbitrate, and even initiated the arbitration process, and an arbitrator and back up arbitrator has been selected. (Amended Petition, ¶¶ 3-6, 12-18.) An arbitration date has even been selected. (*Ibid.*) Here, as noted above, the Court has no authority to compel an arbitration where one is already pending. Thus, the Court **DENIES** Petitioner’s second claim for relief, which requests the Court to compel the arbitration of Officer Two.

Third Claim for Relief – Consolidating Arbitrations of Officer One and Officer Two

Petitioner asks the Court to consolidate the arbitrations of Officer One and Officer Two. (Amended

Petition, ¶¶ 19-20; MPA ISO Amended Petition, p. 7.) Respondent argues that the arbitrations should not be consolidated because they do not involve the same parties, there is insufficient information concerning their commonality of facts, and that merging the two arbitrations would force each officer to expose their confidential personnel file materials to each other in violation of Penal Code section 832.7. (Opposition, p. 11.)

Code of Civil Procedure section 1281.3, provides that “[a] party to an arbitration agreement may petition the court to consolidate separate arbitration proceedings, and the court may order consolidation of separate arbitration proceedings when: (1) Separate arbitration agreements or proceedings exist between the same parties; or one party is a party to a separate arbitration agreement or proceeding with a third party; and (2) The disputes arise from the same transactions or series of related transactions; and (3) There is common issue or issues of law or fact creating the possibility of conflicting rulings by more than one arbitrator or panel of arbitrators.” The statute also provides that “[t]he court may exercise its discretion under this section to deny consolidation of separate arbitration proceedings. . . .” (Code Civ. Proc., § 1281.3.)

Here, Petitioner argues that both arbitration matters involve the same parties to the same MOU, and that both officers were “terminated from their employment for similar allegations of misconduct, so the second prong has been met.” (MPA ISO Amended Petition, p. 7:13-14.) Notably, the similarity of the allegations are not addressed in the declaration of Arcelia Hurtado in support of the Amended Petition. (Hurtado Decl. ISO Amended Petition, ¶¶ 1-11.) The Court finds that Petitioner has not shown satisfaction of the three requisite elements for consolidation in that Petitioner does not even contend that the disputes arise from the same transactions or series of related transactions—as being terminated for similar allegations of misconduct is not the same as the disputes arising from the same transaction or series or related transactions. Terminations are fact-specific inquiries and the same grounds for termination can play out extremely differently for different employees. The Court **DENIES** Petitioner’s request to consolidate the arbitration proceedings of Officer One and Officer Two.

Petitioner’s Request for Disqualification of Arbitrator 2

Petitioner asks the Court to disqualify Arbitrator Two pursuant to Code of Civil Procedure section 1281.9(a)(1), because it contends that Arbitrator Two “cannot be impartial to the City.” (MPA ISO Amended Petition, p. 8:18.) This is because Arbitrator Two “has previously issued an arbitration decision finding that one of the City’s main witnesses in [the arbitrations of Officer One and Officer Two] . . . had been impeached, and his testimony could not be trusted due to intentional dishonesty.” (*Id.*, at p. 8:18-25.)

“In any arbitration pursuant to an arbitration agreement, when a person is to serve as a neutral arbitrator, the proposed neutral arbitrator shall disclose all matters that could cause a person aware of the facts to reasonably entertain a doubt that the proposed neutral arbitrator would be able to be impartial, including all of the following: (1) The existence of any ground specified in Section 170.1 for disqualification of a judge. (Code Civ. Proc., § 1281.9.)

The Court finds that the Hurtado Declaration is insufficient to show that Arbitrator Two cannot be impartial towards the City. (Hurtado Decl., ¶ 10.) A neutral arbitrator having assessed the credibility of a witness is not indication of lack of impartiality to that witness’s employer. It is therefore

insufficient here for the Court to disqualify Arbitrator Two based on the record currently before the Court. The Court **DENIES** Petitioner's request to disqualify Arbitrator Two.

Ruling

For the reasons discussed above, the Court **DENIES** the Amended Petition to Compel Arbitration and to Consolidate Separate Arbitration Proceedings.